

Appearances: Department CM2 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to Code of Civil Procedure § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS

May 14, 2026

#	Case Name	Tentative
1.	<u>30-2021-01184189-CU-PO-CJC</u> Holcomb vs. Aliso Villas Condominium Association	Defendants Aliso Villas Condominium Association and Total Property Management, Inc., seek an award of \$48,111.00 as reasonable attorneys' fees incurred in connection with the appeal brought by plaintiff and appellant Scott Palmer Holcomb. Plaintiff brought an appeal in this case after the Court granted nonsuit at trial and entered a judgment against him. The Court of Appeal affirmed the judgment and denied a motion for rehearing. After plaintiff's petition for review by the Supreme Court was denied, the Court of Appeal issued remittitur on February 25, 2026. ROA 760. This Court previously awarded prevailing party attorneys' fees to moving defendant for fees incurred before and at trial. <i>See</i> Minute Order of April 7, 2025, ROA 659. The Court held that the award was authorized under Civil Code §

		5975(c), which provides that, “[i]n an action to enforce the governing documents [of a common interest development], the prevailing party shall be awarded reasonable attorney's fees and costs.” While attorneys’ fees are usually not a recoverable cost on appeal, if they are recoverable under statute or contract at the trial court, they are also recoverable for services on appeal. <i>Harbour Landing-Dolfann, Ltd. v. Anderson</i>, 48 Cal. 4th 260, 263 (1996). The trial court has jurisdiction to award them, regardless of the lack of specific instructions in the opinion or the remittitur. <i>Id.</i> at 265. Thus, moving defendants are entitled to recover reasonable attorneys’ fees as the prevailing parties on appeal. In statutory fee-shifting cases, in which the prevailing party is statutorily authorized to recover his or her attorney's fees from the losing party, the lodestar method is the primary method for establishing the amount of recoverable fees. <i>Glaviano v Sacramento City Unified School District</i>, 22 Cal. App. 5th 744, 750-751 (2018). Under the lodestar method, the trial court must first determine the lodestar figure, which is the reasonable hours spent multiplied by the reasonable hourly rate, based on a careful compilation of the time spent and reasonable hourly compensation of each attorney involved in the presentation of the case. <i>Id.</i> At 751. Moving defendants have presented evidence, consisting of the declaration of Attorney Jody Steinberg and a copy of the billing entries (Exhibit B to the Steinberg declaration) to show that the request for attorneys’ fees of \$48,111.00 is based on a total of 235.3 hours billed as follows: • 36.5 hours at a rate of \$135/hr. (\$4927.50) • 16.3 hours at a rate of \$220/hr. (\$3586.00) • 168.5 hours at a rate of \$235/hr. (\$39,597.50) Given the tasks performed, the Court can find that the billing rates and the number of hours billed are more than reasonable and the fees requested by moving defendants may be awarded.
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		Accordingly, the motion of defendants Aliso Villas Condominium Association and Total Property Management, Inc., for an award of \$48,111.00 as reasonable attorneys' fees incurred in connection with the appeal brought by plaintiff and appellant Scott Palmer Holcomb is GRANTED. Moving party to give notice.
2.	<u>30-2025-01469044-CU-PO-CJC</u> Michaud vs. Costco Wholesale Membership, Inc	Before the Court are the following TEN (10) motions: two (2) Motions to Compel Further Responses to Request for Production of Documents ("MF-RFP"), Set Two, and Sanctions (ROA 446), brought by Plaintiff Valeda Michaud, by and through her Guardian <i>Ad Litem</i>, Melanie Michaud (collectively, "Michaud"), and Charles Michaud (collectively, "Plaintiffs"), one against Defendant Costo Wholesale Corporation ("Corporation"), and one against Defendant Costco Wholesale Membership, Inc. ("Membership") (collectively, "Defendants"); two (2) MF-RFP, Set One, and Sanctions (ROA 450) brought by Plaintiffs, one against Corporation, and one against Membership; a Motion to Compel the Deposition ("MC-DEPO") of Corporation's employee Leigh Ann Ruijters ("Ruijters"), and Sanctions (ROA 451), brought by Michaud against Corporation; a Motion to Compel Further Responses to Request for Admissions ("MF-RFA"), Set Two, and Sanctions (ROA 453), brought by Plaintiffs against Membership; two (2) Motions to Compel Further Responses to Special Interrogatories ("MF-SROG"), Set Two (ROA 262), and Sanctions, brought by Plaintiffs, one against Corporation, and one against Membership; and two (2) MF-SROG, Set One, and Sanctions (ROA 449), brought by Plaintiffs, one against Membership, and one against Corporation. As a preliminary matter, the Court notes that on March 27, 2026, the Court ordered Plaintiffs to file amended motions, declarations, and separate statements for the pending motions. ROA 400. On April 8, 2026, Plaintiffs filed amended moving papers as to all pending motions except for Plaintiffs' MF-SROG, Set Two (ROA 262). The Court